

FEDERAL MARITIME COMMISSION

DOCKET NO. 24-01

Visual Comfort & Co.
v.
COSCO Shipping Lines Co. Ltd.

**COMPLAINANT’S MOTION
FOR CONFIDENTIAL TREATMENT**

Complainant Visual Comfort & Co. (“VCC”) hereby moves, pursuant to 46 C.F.R. §§ 502.69 and 502.5(b) and the January 17, 2024 Initial Order in this Proceeding (“Initial Order”), for confidential treatment of VCC’s Opening Brief in Support of its Claims Against COSCO Shipping Lines Co. Ltd. (“Opening Brief”), VCC’s Proposed Findings of Fact (“PFF”), and VCC’s Appendix to its Opening Brief and Proposed Findings of Fact (“Appendix”).

Pursuant to Commission Rule 5(b), a motion for confidential treatment should specify the information in a filing for which protection is sought and show good cause by demonstrating “the information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii).” 46 C.F.R. § 502.5(b). VCC filed its Opening

Brief, PFF and Appendix on November 8, 2024. None of the documents submitted contained information that VCC has an interest in keeping confidential. However, VCC's submission did contain information that Respondent COSCO Shipping Lines Co. Ltd. ("COSCO") designated as Confidential pursuant to the parties' Protective Order. Accordingly, VCC made proposed redactions to its Opening Brief and requested that COSCO advise as to what information it deems to be confidential and provide its reasoning therefor. COSCO has provided the following table, in the format recommended in the Initial Order, identifying its proposed redactions to VCC's Opening Brief, PFF, and Appendix, and its good cause for each:

Document Bates Number	DESCRIPTION	Classification Requested for	Reason(s) for Confidential Designation
CAppendix at CX684, lines 10-13	Deposition Transcript of Tom Takase	Material indicated	Confidential corporate merger information.
CAppendix at CX701, lines 9-20]	Deposition Transcript of Tom Takase	Material indicated	Commercially sensitive and trade secret internal policies and practices.
CAppendix at CX702, lines 1-15	Deposition Transcript of Tom Takase	Material indicated	Commercially sensitive and trade secret internal policies and practices.
CAppendix at CX714-715, lines 9-3	Deposition Transcript of Tom Takase	Material indicated	Commercially sensitive and trade secret internal information
CAppendix at CX716, lines 9-13	Deposition Transcript of Tom Takase	Material indicated	Commercially sensitive and trade secret information, including trade secret

			commercial pricing strategies.
CAAppendix at CX726-727, lines 18-1 CPFF at ¶ 39-40	Deposition Transcript of Tom Takase	Material indicated	Commercially sensitive and trade secret information, including internal costs, personnel and staffing policies and practices.
CAAppendix at CX732, lines 16-19 CPFF at fn. 2 and Complainant's Opening Brief at ii, 10, 20	Deposition Transcript of Tom Takase	Material indicated	Commercially sensitive and trade secret information, including business strategies and practices for sales, pricing, and services
CAAppendix at CX733-CX749 (all pages up to line 5 on CX749) CPFF at TOC V(C), ¶¶ 72-8, 94, 113 and Complainant's Opening Brief at 25, 26	Deposition Transcript of Tom Takase	Material indicated	Commercially sensitive and trade secret terms relating to strategies for pricing and service.
CAAppendix at CX756-757, lines 12-2 CPFF at ¶ 65 and Complainant's Opening Brief at 23-24	Deposition Transcript of Tom Takase	Material indicated	Commercially sensitive terminal cost and services information.
CAAppendix at CX760- 761, lines 12-1	Deposition Transcript of Tom Takase	Material indicated	Commercially sensitive and trade secret information on terminal costs, services, and

			practices.
CAppendix at CX783-784, lines 14-1	Deposition Transcript of Tom Takase	Material indicated	Highly sensitive commercial information on prices and costs this data originated from a file produced by Respondent COSCO and due to data's highly sensitive commercial and trade secret information, marked "Attorney's Eyes Only." Discussed by the witness at deposition with the expectation that such information remain confidential.
CAppendix at CX796, lines 13-16	Deposition Transcript of Tom Takase	Material indicated	Commercially sensitive rates and terms, including information of Respondent's proprietary information systems and internal reports.
CAppendix at CX600-617, 845-848, 1177-1206, 1220	COSCO Email Chains and Invoices	Material indicated	Commercially sensitive information about non-parties; Commercially sensitive and trade secret information, including internal costs, personnel and staffing policies and practices; Highly sensitive commercial information on prices and costs; and Commercially sensitive rates and terms, including information of Respondent's proprietary information systems and internal reports

Pursuant to the Presiding Officer's November 15, 2024 Order, VCC attaches to this motion the following exhibits:

- Exhibit A: Confidential Version of VCC's Opening Brief
- Exhibit B: Public Version of VCC's Opening Brief
- Exhibit C: Confidential Version of VCC's PFF
- Exhibit D: Public Version of VCC's PFF
- Exhibit E: Confidential Version of VCC's Appendix
- Exhibit F: Public Version of VCC's Appendix

For the foregoing reasons, VCC respectfully requests that the information identified above be kept confidential and that the Presiding Officer accept the confidential and public versions of VCC's Opening Brief, PFF, and Appendix submitted herewith.

DATED: November 25, 2024

Respectfully submitted,
/s/ Jennifer M. Oliver
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CERTIFICATE OF SERVICE

I certify that on the 25th of November, a true and correct copy of the foregoing Motion for Confidential Treatment were served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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